



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

October 15, 2021

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 201908640 regarding Detective Rudy Anzalone, Tax No. 945472 (DADS No. 2021-23966), and Captain Anthony Bentivegna, Tax No. 878931 (DADS No. 2021-23967)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter in its entirety and determined that the proposed penalty outweighs the actions of Detective Anzalone and Captain Bentivegna. Specifically, the Civilian Complaint Review Board (“CCRB”) substantiated a single allegation of misconduct against Detective Anzalone and Captain Bentivegna. The allegation revolved around an alleged failure to show a search warrant to arrested individuals who were present inside of the premises at the time of the warrant’s execution.

The Department’s Patrol Guide, consistent with well-settled case law, requires that, upon request, Members of the Service provide a copy of a search warrant, *safety permitting*. Thus, the requirement to show a search warrant is conditioned upon the safety of the officers *and* members of the public present at the time of the warrant’s execution.

In the instant case, Member of the Service were confronted with a chaotic situation where only some of the individuals inside of the residence were detained while others were not. The non-detained individuals were acting in a manner that reasonably posed a danger to the safety of the Members of the Service and others. It was during this tumultuous situation that Detective Anzalone, in the presence of Captain Bentivegna, was asked to produce the search warrant.

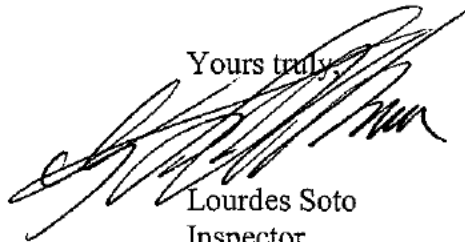
As captured by numerous Body-Worn Cameras, Detective Anzalone and Captain Bentivegna made a good-faith effort to produce the search warrant upon request. However, their production of the warrant was ultimately predicated upon safe conditions at the scene, which did not exist at the time the request was made. Thus, neither Detective Anzalone or Captain Bentivegna was obligated to show the search warrant to anyone present at the scene.

Additionally, it must be noted that Detective Anzalone and Captain Bentivegna each has an excellent employment history with the Department. Particularly, Captain Bentivegna has been a member of the Department for more than 38 years with no prior allegations of misconduct.

Therefore, the Police Commissioner determined that Detective Anzalone and Captain Bentivegna will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 221-17 (23)(a)(Search Warrant/Failure to Show Search Warrant).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', is written over the 'Yours truly,' text.

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office